contacts have made clear that they will seek to expand French national policy to a EU-wide level and they believe that they are in the vanguard of European public opinion in turning back GMO's. They have noted that the member states have been unwilling to support the Commission on sanctioning Austria's illegal national ban. The GOF sees the ten year review of the Commission's authorization of MON 810 as a key opportunity and a review of the EFSA process to take into account societal preferences as another (reftels).

3. (C) One of the key outcomes of the "Grenelle" was the decision to suspend MON 810 cultivation in France. Just as damaging is the GOF's apparent recommitment to the "precautionary principle." Sarkozy publicly rejected a recommendation of the Attali Commission (to review France's competitiveness) to move away from this principle, which was added to the French constitution under Chirac.

4. (C) France's new "High Authority" on agricultural biotech is designed to roll back established science-based decision making. The recently formed authority is divided into two colleges, a scientific college and a second group including civil society and social scientists to assess the "common interest" of France. The authority's first task is to review MON 810. In the meantime, however, the draft biotech law submitted to the National Assembly and the Senate for urgent consideration, could make any biotech planting impossible in practical terms. The law would make farmers and seed companies legally liable for pollen drift and sets the stage for inordinately large cropping distances. The publication of a registry identifying cultivation of GMOs at the parcel level may be the most significant measure given the propensity for activists to destroy GMO crops in the field.

5. (C) Both the GOF and the Commission have suggested that their respective actions should not alarm us since they are only cultivation rather than import bans. We see the cultivation ban as a first step, at least by anti-GMO advocates, who will move next to ban or further restrict imports. (The environment minister's top aide told us that people have a right not to buy meat raised on biotech feed, even though she acknowledged there was no possible scientific basis for a feed based distinction.) Further, we should not be prepared to cede on cultivation because of our considerable planting seed business in Europe and because farmers, once they have had experience with biotech, become its staunchest supporters.